

Srishti Banswal D/O Sh. Kishanlal ... vs Narendra Kumar Chandel S/O Sh Daulat Ram ... on 5 March, 2021

Author: Goverdhan Bardhar

Bench: Goverdhan Bardhar

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 228/2019

Srishti Banswal D/o Sh. Kishanlal Khatik, Aged About 38 Years,
B/c Khatik, Aen (Electrical) Meter Site Testing, Mph Old Power
House (Nala Power House) 220 K.v. Gss Jaipur Viduyt Vitran
Nigam Limited, Jaipur Presently Residing At House No. 57,
Subhash Nagar, Alwar Rajasthan

----Petitioner

Versus

Narendra Kumar Chandel S/o Sh Daulat Ram Chandel, B/c
Khatik, R/o Ward No. 17, Keshav Rai Patan, Tehsil Keshav Rai
Patan, District Bundi Rajasthan

----Respondent

Connected With S.B. Civil Transfer Application No. 227/2019 Srishti Banswal D/o Sh. Kishanlal Khatik, Aged About 38 Years, B/c Khatik, Aen (Electrical) Meter Site Testing, Mph Old Power House (Nala Power House) 220 K.v. Gss Jaipur Viduyt Vitran Nigam Limited, Jaipur Presently Residing At House No. 57, Subhash Nagar, Alwar Rajasthan

----Petitioner Versus Narendra Kumar Chandel S/o Sh Daulat Ram Chandel, B/c Khatik, R/o Ward No. 17, Keshav Rai Patan, Tehsil Keshav Rai Patan, District Bundi Rajasthan

----Respondent For Petitioner(s) : Mr. Shovit Jhaharia For Respondent(s) : Mr. Narendra Kumar Chandel -

respondent/applicant - present in person HON'BLE MR. JUSTICE GOVERDHAN BARDHAR Order 05/03/2021 (2 of 3) [CTA-228/2019] Both the transfer applications have been filed by petitioner/non-applicant under Section 24 read with Section 22 of the Code of Civil Procedure, 1908 for transferring the application No.727/2019 (Narendra Kumar Chandel vs. Shrishti Banswal) filed by the respondent/applicant under Section 24 of the Hindu Marriage Act as also the application No.255/2019 (Narendra Kumar Chandel vs. Shrishti Banswal) filed by the respondent/applicant under Section 9 of the Hindu Marriage Act from the Judge Family Court, Bundi to the Judge Family Court, Alwar.

Learned counsel for the petitioner/non-applicant in both the applications submits that petitioner/non-applicant is a working lady and is residing with her parents in Alwar and the

distance from Alwar to Bundi is approx. 350 Kms. Learned counsel further submits that the petitioner/non-applicant has two minor daughters and for attending the Court at Bundi, she requires at least one attendant with her which is quite difficult for her and the husband - applicant has filed application for pendente lite maintenance but to harass the applicant - wife. Therefore, both the matter be transferred from the Judge Family Court, Bundi to the Judge Family Court, Alwar.

Mr. Narendra Kumar Chandel - respondent - applicant (husband), who is present in person has opposed the averments made in both the transfer applications.

Taking note of the facts and circumstances of the case and also in the interest of Justice, both the applications No.727/2019 and 255/2019 (Narendra Kumar Chandel vs. Shrishti Banswal) filed by the respondent/applicant under Section 24 and 9 of the Hindi Marriage Act before the Judge Family Court, Bundi are hereby transferred to the Judge Family Court, Alwar.

Both the transfer applications are disposed of accordingly.

(3 of 3) [CTA-228/2019] The parties are directed to appear before the Judge Family Court, Alwar on 9.4.2021 and the Court concerned is directed to send the record of the case to the Judge, Family Court, Alwar, forthwith.

However, it is expected from the Judge, Family Court, Alwar to decide both the applications filed by the respondent/applicant expeditiously preferably within a period of six month from the date of production of a certified copy of this order.

(GOVERDHAN BARDHAR),J Dheeraj/8-9 Powered by TCPDF (www.tcpdf.org)